

23STCV12017 23STCV12017

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Case Number: 23STCV12017 Hearing Date: September 22, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: Tuesday, September 22, 2026

Case Name: Neil Dorval v. Richard Sherman, et al.

Case No.: 23STCV12017

Motion: Motion for Summary Judgment/Summary Adjudication

Moving Party: Defendants, Richard Sherman, et al.

Responding Party: Plaintiff Neil Dorval

Notice: OK

Ruling: The motion for summary judgment and alternative motion for summary adjudication is GRANTED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

Plaintiff Neil Dorval alleges Defendants Richard Lloyd Sherman, Abhay Khosla and Sherman Law Group provided substandard legal services involving intellectual property work. The representation involved certain music copyright claims

against a third party identified as Integral. Plaintiff alleges Defendants obtained \$55,000 settlement was far below Plaintiff's own estimated damages of between \$1,000,000 to \$24,000,000.

On May 26, 2026, Plaintiff filed a complaint for Professional Negligence, and Breach of Fiduciary Duties. Defendants answered on November 6, 2026.

DISCUSSION

APPLICABLE LAW

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scaff v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.)

"A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) "An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork." (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

APPLICATION TO FACTS

Request for Judicial Notice

Defendants' Request for Judicial Notice: DENIED.

The court can take judicial notice of the existence of other District Court orders, but cannot take judicial notice as to the content for the truth of any matter asserted in the unpublished rulings. (Sosinsky v. Grant (1992) 6 Cal.App.4th 1548,

1568-1569.)

Evidentiary Objections

Dorval Declaration: Overruled.

Plaintiff remains entitled to express a personal opinion on the value of the claims and the circumstances of the settlement acceptance, but any legal and factual conclusions on causation issues presented in the motion lack evidentiary value and are therefore not considered. (Code Civ. Proc., 437c, subd. (q).)

Legal Malpractice

Defendants Richard Lloyd Sherman, Abhay Khosla and Sherman Law Group move for summary judgment or alternatively summary adjudication on the complaint for professional negligence, and breach of fiduciary duty. Defendants present an extensive history of the subject litigation and additional alleged facts about the past practices and background of Plaintiff. The acrimonious relationship ultimately led to the \$55,000 settlement with Integral, which Plaintiff characterizes as agreed upon under duress due to the threats of counsel to withdraw. In addition to the “coerced” \$55,000 settlement allegations, Plaintiff also represents the settlement led to a waiver of a potential federal copyright action in the United States District Court.

Defendants challenge the entire action on grounds of causation. Defendants contend Plaintiff lacks sufficient evidence establishing a better settlement or litigation outcome but for the alleged legal malpractice. Defendants also maintain the breach of fiduciary claims are barred as well on grounds of causation.

Plaintiff in opposition first challenges the motion on grounds of a failure to shift the burden based on the lack of evidence, and triable issues of material fact exist. Plaintiff relies on a dispute over valuation of the action undertaken by Defendants. Plaintiff also denies any time bar on the copyright claim. Any and all challenges improperly require qualitative determinations beyond the scope of a motion for summary judgment. Plaintiff denies any redundancy with the fiduciary duty cause of action.

Defendants in reply emphasize the lack of any admissible evidence that Plaintiff would have obtained a better result than the \$55,000 settlement if counsel adhered to the standard of care. Plaintiff also lacks evidence of a potential timely filed copyright action. Causation need not be a jury question when the facts remain undisputed. Defendants shift the burden, and Plaintiff raises no triable issues of material fact. The breach of fiduciary claim lacks support.

“In civil malpractice cases, the elements of a cause of action for professional negligence are: ‘(1) the duty of the attorney to use such skill, prudence and diligence as members of the profession commonly possess; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage. [Citations.]’” (Wiley v. County of San Diego (1998) 19 Cal.4th 532, 536.) “In a litigation malpractice action, the plaintiff must establish that but for the alleged negligence of the defendant attorney, the plaintiff would have obtained a more favorable judgment or settlement in the action in which the malpractice allegedly occurred.” (Viner v. Sweet (2003) 30 Cal.4th 1232, 1241.)

Settlement and Waiver of Federal Court Copyright Action

Defendants initially focus on the waived copyright claim. Defendants essentially contend Plaintiff suffered no damages in that Plaintiff lacked a valid copyright action due to the lack of any actual copyrighted material allegedly utilized by Integral. Even if a complaint was filed, any complaint was barred by the statute of limitations. Further, losing on the copyright claim could lead to an award of attorney fees by the prevailing party.

The positions presented in the motion regarding the lack of a valid claim for copyright appear to depend on an opinion memorandum drafted by Abhay Khosla and emailed to Plaintiff on March 26, 2021. [Compendium of Evidence, Ex. 28-29.] While the memorandum specifically finds a lack of a strong position for copyright infringement, thereby leading to the potential for attorney fees to exceed any potential recovery, the statute of limitations ban remains unaddressed. Regardless, attorney Richard Sherman specifically denies any agreement to represent Plaintiff in any District Court copyright action, and instructed Plaintiff to seek separate counsel for such an action. [Declaration of Richard Sherman, ¶¶ 4, 9, 14, Ex. 34.] The retainer letter only indicates services association involving “prior employment” and omits any reference to copyright. [Compendium, Ex. 26.]

Plaintiff in opposition relies on a submitted declaration as the sole serving basis of all evidence submitted in opposition to the motion. Plaintiff describes the retainer agreement as including continued use of allegedly copyrighted material of Plaintiff’s recorded music utilized by Integral without license. [Declaration of Neal Dorval, ¶ 23.] Dorval offers no specific address or even minimal denial of the January 11, 2022, Sherman email categorically disclaiming in bold type any agreement for services on potential copyright matters. [Compendium, Ex. 34.] Notwithstanding Plaintiff appears to depend on the alleged value of the copyright claims as part of the greater overall settlement value. [Declaration of Neal Dorval, 24-30.] Plaintiff’s apparent position relies on the premise that an opinion on the value of a claim not undertaken by counsel somehow still inextricably intertwines the damages value all settlement negotiations, thereby becoming part of the scope of representation, irrespective of any (unaddressed) disclaimer. The position lacks legal and material factual support.

While no party submits a copy of the settlement agreement, the court accepts the representation of Plaintiff that the settlement agreement includes a waiver of any claims in a federal jurisdiction copyright lawsuit. The decision of Plaintiff to waive said claims albeit in consultation with Defendants during settlement negotiations on the pending “employment” case filed in the Ventura County Superior Court, however, will not establish any basis of a duty of care, breach, causation or damages on the copyright claim.

“Like other defendants in negligence lawsuits, litigation support professionals are only responsible for the losses they cause.” (Mattco Forge, Inc. v. Arthur Young & Co. (1997) 52 Cal.App.4th 820, 834.) Plaintiff made a transactional decision regarding the value and viability of the copyright case and cannot impute this decision on Defendants following their explicit disavowal of any representation in the copyright action.

The California Supreme Court held that cases involving claims arising from a disagreement over the retrospective consideration of an underlying transaction cannot depend on speculation. The aggrieved party must still establish a showing of damages under the malpractice standard.

“When a business transaction goes awry, a natural target of the disappointed principals is the attorneys who arranged or advised the deal. Clients predictably attempt to shift some part of the loss and disappointment of a deal that goes sour onto the shoulders of persons who were responsible for the underlying legal work. Before the loss can be shifted, however, the client has an initial hurdle to clear. It must be shown that the loss suffered was in fact caused by the alleged attorney malpractice. It is far too easy to make the legal advisor a scapegoat for a variety of business misjudgments unless the courts pay close attention to the cause in fact element, and deny recovery where the unfavorable outcome was likely to occur anyway, the client already knew the problems with the deal, or where the client’s own misconduct or misjudgment caused the problems. It is the failure of the client to establish the causal link that explains decisions where the loss is termed remote or speculative. Courts are properly cautious about making attorneys guarantors of their clients’ faulty business judgment.”

(Viner v. Sweet, supra, 30 Cal.4th at p. 1241.)

The court therefore finds Defendants shift the burden of proof on the basis of causation. Plaintiff fails to raise any valid triable issues of material fact. The claims arising from the copyright settlement lack any valid basis of support under the legal malpractice standard. Plaintiff cannot graft a basis of representation and damages from unrelated representation in order to create triable issues of material fact. The declaration of Plaintiff establishes no triable issues of material fact on the subject of representation, a requirement to settle claims not undertaken in representation, and therefore the failure to obtain a better result due to any substandard legal practices. The assumed damages are purely based on unrelated speculative opinion based on claims outside the control of Defendants, and strictly within the decision making of Plaintiff. (Viner v. Sweet, supra,

30 Cal.4th at p. 1241.)

Settlement of the Ventura Superior Court Action

On the remaining portion of the \$55,000 settlement, Defendants also challenge the claim on grounds of speculation. Specifically, Plaintiff lacks evidence on an ability to obtain a more favorable recovery on the Ventura County Superior Court action. [Compendium, Ex. 49: Deposition of Neil Dorval, Vol. 2, 277:15-278:22.] While the scope of representation is not in question for this part of the damages claim, like the copyright claim, the court finds Defendants shift the burden on the basis of transactional regret.

Decoupling the source of missed copyright claim damages on the unrepresented part of the action by Defendants, Plaintiff is only left with the position of duress due to the threat of withdrawal of counsel. The only apparent position for a belief in a greater settlement appears to arise from personal belief, as stated in the declaration of Dorval in opposition, and the deposition testimony. [Dorval Decl., 36-45.] Plaintiff admits to a lack of any evidence in deposition. Such testimony again amounts to speculation and lack of any foundation for the damages claim. (Thompson v. Halvonik (1995) 36 Cal.App.4th 657, 664.) The court therefore finds no triable issues of material fact as to the entire legal malpractice cause of action on grounds of causation as a matter of law.

Breach of Fiduciary Duty

Defendants contend the core of the damages causation deficiency permeates the breach of fiduciary claim. Plaintiff contends the subject cause of action is not redundant.

To plead a cause of action for breach of fiduciary duty, a plaintiff must allege facts showing the existence of a fiduciary duty owed to that plaintiff, a breach of that duty and resulting damage. (Pellegrini v. Weiss (2008) 165 Cal.App.4th 515, 524.) A fiduciary duty is founded upon a special relationship imposed by law or under circumstances in which "confidence is reposed by persons in the integrity of others" who voluntarily accept the confidence. (Tri-Growth Centre City, Ltd. v. Silldorf, Burdman, Duignan & Eisenberg (1989) 216 Cal.App.3d 1139, 1150.) "A fiduciary or confidential relationship can arise when confidence is reposed by persons in the integrity of others, and if the latter voluntarily accepts or assumes to accept the confidence, he or she may not act so as to take advantage of the other's interest without that person's knowledge or consent." (Pierce v. Lyman (1991) 1 Cal.App.4th 1093, 1101-02.)

The existence of the fiduciary duty is established based on the admitted undertaking of legal representation. The retainer agreement indisputably establishes the parties' legal relationship on the Ventura County Superior Court action.

Like legal malpractice, breach of fiduciary duty can also fail on the basis of speculative damages. "The relevant legal principles have been stated as follows: 'Causation requires proof that the defendant's conduct was a "substantial factor" in bringing about the harm to the plaintiff. [Citations.] Tortious conduct is "not a substantial factor in bringing about harm to another if the harm would have been sustained even if the actor had not [committed the tort]," unless the defendant's conduct operates with another force and "each of itself is sufficient to bring about harm...." [Citation.] ... [¶] A plaintiff cannot recover damages based upon speculation or even a mere possibility that the wrongful conduct of the defendant caused the harm. [Citations.] Evidence of causation must rise to the level of a reasonable probability based upon competent testimony. [Citations.] "A possible cause only becomes 'probable' when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action.'" (Citation.)" (Service Employees Internat. Union, Local 250 v. Colcord (2008) 160 Cal.App.4th 362, 375 (internal quotation marks omitted).)

Consistent with the legal malpractice cause of action, Defendants shift the burden based on the lack of any evidence establishing damages as a result of any breach of fiduciary duty by Defendants in representation of Plaintiff. Once again, Plaintiff only presents speculation in support of the claim for a better result without any actual objectively sourced evidence other than the self-serving declaration of Plaintiff. The court finds no triable issues of material fact.

CONCLUSION

Defendants Richard Lloyd Sherman, Abhay Khosla and Sherman Law Group's motion for summary judgment is GRANTED.

Defendants give notice and submit a proposed judgment.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.